

DATA USE AND DISCLOSURE AGREEMENT

THIS DATA USE AGREEMENT (the "Agreement") is entered into as of March 19, 2026 (the "Effective Date") by and between CATCH Greater Houston , a [type of entity] organized under the laws of [State] ("Provider"), and PrognosUs LLC , a Limited Liability Company organized under the laws of Delaware ("Recipient").

Provider and Recipient are each referred to individually as a "Party" and collectively as the "Parties."

RECITALS

WHEREAS, Recipient supports the CMS Guiding an Improved Dementia Experience (GUIDE) Model, an initiative designed to improve the quality of life for people living with dementia and their caregivers to qualifying beneficiaries AND caregiver support through free to low-cost resources;

WHEREAS, Provider possesses certain contact information for caregivers who may benefit from the GUIDE Model and/or other free to low-cost support and is contracted directly with GUIDE Model participants;

WHEREAS, the parties desire to establish the terms under which Provider will share specific caregiver data with Recipient to facilitate outreach and engagement in the GUIDE Model and/or other free to low cost support;

NOW, THEREFORE, in consideration of the mutual covenants and agreements set forth herein, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1. DEFINITIONS

- "Authorized Parties" means Recipient and their contracted support group facilitators, accessing caregiver data on behalf of the Recipient to engage qualifying candidates in the GUIDE Model (e.g., Harmonic, and other Medicare Part B enrolled providers/suppliers) and/or other free to low-cost support.
- "Caregiver Data" means the specific data elements listed in Section 2.1.
- "PHI" shall have the meaning set forth in 45 C.F.R. § 160.103.

2. SCOPE OF DATA DISCLOSURE

2.1 Permitted Data Elements. Provider shall disclose only the following information to Recipient:

- Caregiver Full Name
- Caregiver Email Address
- Caregiver Phone Number
- GUIDE enrollment status (with date of alignment)

2.2 Explicit Exclusions. Provider shall not disclose, and Recipient shall not receive, any information that is PHI, including but not limited to:

- Patient Name, Social Security Number, or Date of Birth.
- Specific medical diagnoses or clinical notes.
- Care relationship or any other data that would allow for the re-identification of the patient by the Recipient.

3. PURPOSE OF USE

Recipient shall use the Caregiver Data solely for the following purposes:

- Outreach & Engagement: Contacting caregivers aligned to the GUIDE Model in association with the Provider and caregivers who do not qualify or decline to be enrolled in GUIDE to determine eligibility for and engage with free to low cost resources.
- Coordination: Sharing information as listed in Section 2.1 with Authorized CMS GUIDE Model Participants (including but not limited to Harmonic Health) to facilitate the delivery of GUIDE Model services.
- Internal Administration: Direct internal use by PrognosUs for the management of the GUIDE Model program and/or enrollment into other free to low-cost support.

4. OBLIGATIONS OF RECIPIENT AND PROVIDER

4.1 Non-Identification. Recipient shall not attempt to identify the patient associated with the Caregiver Data or link the data to other datasets to create PHI.

4.2 Limited Disclosure. Recipient may disclose Caregiver Data to Authorized Parties only if such parties are bound by confidentiality obligations no less restrictive than those contained herein. Recipient shall maintain the right to add other Authorized Parties as necessary for the execution of the GUIDE Model and its own free to low-cost supports. Recipient will inform the Provider of additional Authorized Parties when additions are made.

4.3 Safeguards. Recipient shall implement administrative, physical, and technical safeguards to prevent unauthorized use or disclosure of the Caregiver Data. The Provider may, upon reasonable notice, audit the Recipient's compliance with this Agreement, including review of policies, procedures, and systems related to data security and use. If either party becomes aware of a breach of protected data, whether GUIDE or non-GUIDE

eligible caregivers, they must notify the other party within 48 hours and provide details of the incident, including the type of data involved and corrective actions taken.

4.4 Provider Representations. Provider represents and warrants that, where necessary, Provider has obtained consent and/or authorization in compliance with all applicable federal or state laws applicable to data protection, privacy and security of personal information.

5. TERM AND TERMINATION

5.1 Term. This Agreement shall remain in effect until terminated by either party with thirty (30) days' written notice.

5.2 Termination for Cause. Either Party may terminate this Agreement immediately upon written notice if the other Party: (i) materially breaches any provision of this Agreement and fails to cure such breach within thirty (30) days after receipt of written notice specifying the breach; or (ii) becomes insolvent, files for bankruptcy, or makes an assignment for the benefit of creditors.

5.3 Data Disposition. Upon termination, Recipient shall, at Provider's direction, either return or destroy all Caregiver Data in its possession, unless retention is required by law or CMS audit requirements.

6. INDEMNIFICATION

6.1 Mutual Indemnification

Each party (the "Indemnifying Party") agrees to indemnify, defend, and hold harmless the other party (the "Indemnified Party"), its officers, directors, employees, agents, and affiliates from and against any and all claims, liabilities, damages, losses, costs, and expenses (including reasonable attorney's fees) caused by the negligence or willful misconduct of the Indemnifying Party, its employees, agents, or subcontractors.

Notwithstanding the foregoing, neither party shall be liable for any claims, damages, or losses to the extent caused by the negligence or willful misconduct of the Indemnified Party.

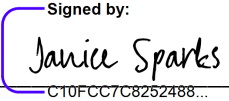
7. MISCELLANEOUS

7.1 Non-Exclusivity. This Agreement is non-exclusive. Both parties remain free to enter into similar arrangements with other entities, including Area Agencies on Aging (AAAs), hospitals, or medical and non-medical service providers.

7.2 Relationship of Parties. Nothing in this Agreement creates a partnership, joint venture, or agency relationship between the parties.

6.3 Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the State of [State], without regard to its conflicts of law provisions.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

CATCH Greater Houston By: 
Executive Director
Title: _____
Date: 3/19/2026

PrognosUs LLC By: 
Founder and CEO
Title: _____
Date: 3/19/2026